

## Section 135 FIR not quashed; Cr.P.C. arrest safeguards and Supply Code compounding

High Court of Judicature at Allahabad · Division Bench · 12 February 2015 · Criminal Misc. Writ Petition No. 3938 of 2015 · **Writ disposed of: FIR under Section 135 not quashed; police to follow Section 41(1)(b) read with Section 41-A Cr.P.C. if arrest is made; compounding left to the Supply Code, 2005 if available.**

### HEADNOTE

A Division Bench of the Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003, holding that the FIR disclosed a cognizable offence. Arrest not having been made, the Court directed that if arrest were effected in an offence not entailing sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C., with a complaint to the Magistrate as the remedy for breach. If the offence is compoundable, the petitioner may seek compounding under the Electricity Supply Code, 2005.

### FACTUAL SUMMARY

The petitioner sought quashing of an FIR dated 20 January 2015 registered as Case Crime No. 40 of 2015 under Section 135 of the Electricity Act, 2003 at Police Station Kaptanganj, District Basti. Arrest had not been made. Counsel argued that the alleged offence could not attract a sentence exceeding seven years, so arrest should not be mechanical, and that the offence was compoundable. The State and the complainant were represented.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::135

FIR quash, arrest safeguards and compounding

#### HOLDING

An FIR under Section 135 of the Electricity Act, 2003 will not be quashed where it discloses a cognizable offence. Arrest, if to be made in an offence not entailing sentence of more than seven years, must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.; a complaint may be made to the Magistrate if those provisions are breached. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE WAS COMPOUNDABLE ON THESE FACTS

The Court said the petitioner may seek the Supply Code, 2005 compounding remedy if the offence is compoundable. ¶ 1